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Briefing note: the minimum wage debate in South Africa

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Introduction

In his State of the Nation address on the 17th of June 2014, President Zuma announced government's intention to investigate the possibility of introducing a national minimum wage to reduce income inequality. Since this announcement, the country has been debating the benefits and harms of a national minimum wage. More recently, in September, the Portfolio Committee on Labour heard presentations from various stakeholders on a national minimum wage.

This briefing note seeks to present the various views in the debate on a national minimum wage. As background, it defines and explains the concept of minimum wage, and provides both international and the country's experience with minimum wages.

Defining a minimum wage

A minimum wage refers to the lowest amount employers may legally remunerate their employees. A minimum wage can be applied within a sector or across different sectors, and can be specified according to an hourly, daily or monthly rate. The passing of minimum wage legislation creates a "wage-floor". The respective employers are then legally bound to remunerate employees at levels at least equal to the minimum wage.

Objective of a minimum wage

Minimum wage legislation is generally used with the intention of reducing poverty and/or inequality. A minimum wage can allow for those formally employed to meet basic needs, thereby reducing levels of extreme poverty. As the minimum wage creates a wage-floor, low income individuals are likely to experience an increase in income. An increase in the incomes of low income individuals relative to high-income individuals decreases inequality.

The economics of a minimum wage

Whilst the objectives of minimum wage legislation are defined, the effects of minimum wage legislation are less certain and a subject of significant contention.

Proponents of the minimum wage argue that the introduction of a minimum wage will allow for:

- A **reduction in poverty**, as higher incomes will allow for a greater proportion of households to meet basic needs.
- A **reduction in inequality**, as an increase in incomes of low-income households relative to high income households reduces income inequality.
- **Higher growth**, as the increase in total household income arising from the minimum wage increases demand in the economy. The economy then needs to increase output to meet higher demand, thereby employing more labour and capital and increasing output. It is also held that lower inequality is associated with higher levels of growth.
- **Improved social cohesion.** It is believed that high income inequality gives rise to increased social tension and instability between income groups. A reduction in income inequality, through a minimum wage, may allow for improved social cohesion.

Opponents of the minimum wage argue that the introduction of a minimum wage will not result in a reduction in poverty and inequality, it will instead:

- **Lower employment**. It is argued that not all firms will be able (or willing) to absorb the higher labour costs arising from the introduction of a minimum wage. Workers employed by firms able to absorb or pass on the additional cost arising from higher wages will retain their jobs. Workers employed by firms unable to do so will be forced out of employment as firms change production technology or are forced out of the market. This will result in lower overall employment. It is believed that a loss of employment occurs when the minimum wage applies to low-skilled workers.

- **Lower income**. Whilst workers employed by firms able to pay the minimum wage will experience an increase in income, those laid-off may remain unemployed or have to seek informal employment at a wage lower than the minimum wage.
- Entrepreneurs may decide to introduce **new production techniques**, which were previously considered too expensive, this results in **lower employment** due to substitution of labour with capital.
- **Lower productivity and competitiveness**. As productivity is defined as physical output relative to the cost, increasing the cost of labour whilst keeping output fixed results in a lower productivity i.e. the cost of the same output has increased. This renders the economy less competitive in the goods it produces relative to other countries.

The potential for a minimum wage to reduce poverty and inequality depends on the following:

- The **level** at which the minimum wage is set relative to the income required for households to meet basic needs. A minimum wage needs to be set at a level high enough to allow for households to meet basic needs. Similarly, the higher minimum wage, the higher the effect on reducing inequality, assuming no changes to employment levels.

- If the minimum wage is set at a suitable level, it still requires high **levels of compliance** on the part of employers to have a significant effect on poverty and inequality. Whilst the minimum wage needs to be set at a suitable level to significantly address poverty and inequality, a high minimum wage increases the incentive for employers to violate minimum wage legislation. It is important to note informal enterprises as well as individuals employed informally are not bound by minimum wage legislation, thus the introduction of a minimum wage may not affect them directly.

- The **response** of employers to the introduction of minimum wages. If employers are able to absorb the higher labour costs arising from the introduction of a minimum wage, then the minimum wage will have a significant impact on poverty and inequality. However, if the employers are unable (or unwilling) to absorb the higher labour costs then overall employment may decrease as firms change production techniques that utilise less labour or are forced out of the sector. In addition, employees may be forced into the informal sector where wages and benefits are lower than in the formal sector, thereby increasing poverty and inequality. The degree to which workers are displaced (laid off) also depends on the demand for the product, and substitutes to the product. If demand for the product is sensitive to price or substitute products are available, then workers are more likely to be laid off.

- The **indirect effect on overall demand**. If there is no significant decrease in employment levels arising from the introduction of a minimum wage, then average household incomes will increase. This will increase both household spending and saving. An increase in household spending will increase demand across different sectors, thereby benefiting the broader economy. However, if there is a significant decrease in employment levels arising from the introduction of a minimum wage, then the wider economy may also be worse off.

The potential for this to affect poverty and inequality depends on the structure of the economy and the progressiveness of the country’s fiscal policy. If the benefits from a change in spending accrue to low-income rather than high-income individuals, then the effect on poverty will be significant. Similarly, if the country has a strong redistributive policy, including taxation and spending, then the effect on poverty and inequality will be significant.

International experience

In modern history, New Zealand and Australia were the first countries to introduce minimum wage legislation, this was at the end of the 19th century. It was only in the second half of the 20th century where minimum wage legislation became widespread, particularly under the International Labour Organisation (ILO). Minimum wage legislation enjoyed support until the debt crisis in the developed world in the 1970s, which saw a decline in support. In recent decades there has been an increase in support for the minimum wage. Countries such as Brazil, China, and the UK have introduced or reactivated minimum wages. It is estimated that today over 90% of ILO member states[1] have some form of minimum wage legislation, however this differs according to coverage – national or sector.

Early empirical studies on the effects of a minimum wage on employment levels supported the view that in a competitive labour market, a minimum wage set above the market clearing wage[2] results in a loss in employment. However, in the mid-1990s, the view that minimum wages caused job losses was challenged, beginning with the work of Card and Krueger (1995)[3], who showed that under certain circumstances a minimum wage may result in net job gains. A recent study by Dolton and Bondibene (2012)[4] looking at the effects of the minimum wage on employment, using a data from 1976 to 2008 for OECD countries, found that when controlling for the effect of the size of the country, a minimum wage doesn't have a negative effect on employment. They also find that minimum wages do not have an effect on employment across the economic cycles (down and up). They did however find that a minimum wage has a negative impact on youth unemployment in negative business cycles.

Recent international experience has changed the perception of minimum wages. Experience has shown that when minimum wages are set at reasonable levels, there are no significant effects (positive or negative) on employment levels[5]. For example, in 2009, 10 years after the UK introduced a national minimum wage its Low Pay Commission found no significant negative impact on employment, whilst policy experts considering it a case of successful policy. Similarly, in the case of Brazil, the national minimum wage is believed to have played an important role in addressing poverty, unemployment and inequality between 2003 and 2010.

The minimum wage in South Africa

South Africa has pursued minimum wage policy since 1994 with the aim of ensuring that low paid workers in vulnerable occupations are guaranteed a basic subsistence income. Unlike many other countries, South African does not have a single minimum wage, instead sectoral determinations set out the minimum wages, as well as working hours and number of days of leave for the particular sector. The Minister of Labour is empowered to make a sectoral wage determination for a particular sector upon recommendations from the Employment Conditions Committee[6]. Sectoral wage determinations are usually introduced when there is limited bargaining and union organisation, leaving employees vulnerable. In contrast, sectors with high levels of unionisation and collective bargaining are (generally) not covered by a sectoral determination e.g. mining and manufacturing. Since 1999 a detailed minimum wage schedule has been developed, and institutions have been established to enforce laws. The first minimum wage legislation was introduced in 1999 for workers in the contract cleaning sector. To date, 14 sectoral determinations have been introduced. These cover; the contract cleaning sector ; civil engineering, learnerships; private security; domestic workers; wholesale and retail; the taxi sector; forestry; farm workers; hospitality; small business; and hospitality.

The collective bargaining process also determines the wages in South Africa. The Labour Relations Act of 1995, underpins collective bargaining in South Africa. Collective bargaining councils allow for employee associations (e.g. the Chamber of Mines) to negotiate with worker representatives (unions) in the central bargaining process. It should be noted that whilst the collective bargaining process strengthens the position of workers in the wage determination process, and that approximately 37%[7] of formally employed workers are covered by collective bargaining, this does not guarantee that workers are not left vulnerable or exploited.

In addition to the "economic wage" earned through work, government provides a "social wage". The "social wage" refers to government spending on social development, health, and education, housing and local amenities. The social wage allows for lower cost of living for low income and working class households. Social assistance contributes to the monthly incomes of approx. 16 million people.

Effects of the minimum wage

There is only limited analysis of the effects of the introduction of minimum wage legislation in South Africa. Analysis is also constrained by relatively low levels of compliance with minimum wage legislation, similar to other developing countries. Bhorat et al (2012)[8], looking at minimum wage violation in South Africa using the 2007 Quarterly Labour Force Survey, find high levels of violation of minimum wage legislation. They find that 44% of workers covered by the sectoral determinations receive wages below the legislated minimum. They also find an average shortfall (the difference between what is earned and the minimum wage) of 35%. Violation is greatest in the security sector (approx. 70%), forestry (55%) and farming (53%). The low observed levels of compliance may arise from the combination of poor enforcement and the low penalties associated (Stanwix, 2013)[9].

Despite low levels of compliance, some effects of the introduction of minimum wage legislation can be observed. Presented below are the observed effects from studies conducted for domestic workers and farm workers. It should be noted that strong conclusions on the effect of minimum wage legislation in South African cannot be drawn.

Domestic workers:
The sectoral determination for domestic workers was introduced in 2002. It applied to domestic workers and gardeners employed by private home owners and prescribed a minimum wage and an annual increase. It also required employers to register their employees (domestic workers) with the Department of Labour. Dinkelman et al[10] (2013) find that, whilst compliance was initially poor, the introduction of the minimum wage had significant positive effects. Significant increase in hourly wages across the board were observed. Whilst employers neither laid off employees nor reduced their working hours. This was the case despite limited monitoring and enforcement on the part of the government.

Farm workers:
The sectoral determination for farm workers was introduced in 2003. It set different minimum wages for workers in areas classified as "rural" and "urban". When it was implemented approximately 70% of farm workers were earning less than the "urban" minimum, whilst 50% were earning less than the "rural" minimum, this was merged into a national minimum in 2009. It also required that all farmworkers have a written contract with employers. Stanwix (2013), looking at agricultural employment in the four years since the implementation of the minimum wage, finds the implementation of the minimum wage to be associated with a decrease in agricultural employment levels, despite no change in levels of output. The implementation of the minimum wage is also associated with an increase in the portion of farm workers with written contracts, as well as the average wage of farm workers.

The above cases show, notwithstanding limitations associated with the data, that South Africa's experience with minimum wage legislation has been mixed. In the case of domestic workers, a non-tradable service with no perfect substitutes, minimum wage legislation is associated with an overall increase in incomes without a reduction in employment. In the case of farmworkers, a tradable sector with alternate production techniques, minimum wage legislation is associated with a reduction in employment in the sector.

The current debate

The current debate on a national minimum wage began with the President stating, during his state of the nation address in June 2014, government's intention to investigate the possibility of a national minimum wage as one of the key mechanisms to reduce income inequality. The President also identified the need for social partners to deliberate on wage inequality, announcing a social partner's dialogue to be convened by the Deputy President under NEDLAC.

Government's intention to investigate the possible introduction of a national minimum wage, with the stated objective of reducing inequality, was reiterated by Labour Minister Mildred Oliphant, following the Department of Labour's budget vote in July 2014.

At the NEDLAC summit announced by the President, the Deputy President noted the need to share growth, and reduce poverty and inequality, and to deliberate the role of a national minimum wage to address poverty and inequality. The Deputy President announced a high level Labour Relations Indaba to be hosted in November. The Indaba will allow all social partners to present their proposals on a national minimum wage.

In September 2014, Parliament's portfolio committee on labour heard submissions on the proposed national minimum wage. Presentations were heard from academics, business and employer associations, trade unions, and lobby groups. Table 1 below presents the views of stakeholders on a national minimum wage.

Stakeholders' views on a national minimum wage

A. Political Parties
African National Congress • Noted its intention to investigate the modality for the introduction of the national minimum wage, in its manifesto for the 2014 national elections • Labour Minister Mildred Oliphant noted that the ANC plans for national minimum wage in 5 years (2019) • Is looking at the Brazilian and Chinese experience. • A national minimum wage is intended to reduce income inequality and broaden income distribution
Democratic Alliance • Is of the view that a national minimum wage will reduce employment levels. Variations in productivity between sectors will price workers out of jobs and cause industries to shut down. • Called for a higher wage for farm workers during the agricultural strike in 2013 • Considers the existing bargaining councils and sectoral determinations as sufficient
Economic Freedom Fighters • The objective of a national minimum wage is to close the wage gap between rich and poor • In its election manifesto, the EFF called for a national minimum wage of R4500 • Identified as priority areas; mine workers; farm workers; private security guards; domestic workers; cleaners; petrol attendants; waiters and waitresses; and retail stores workers
B. Academic institutions

Development Policy Research Unit (DPRU), University of Cape Town[11]

- The level of a national minimum wage is critical
- A split wage may be considered (e.g agricultural/ Non-agricultural; youth)
- Enforcement is a challenge, even with current sectoral determination
- A phase-in may be considered
- Would the ECC be the governing structure or would a new Minimum Wage Commission be set up?

Prof Neil Rankin, University of Stellenbosch[12]

- It will make low-paid individuals more expensive to hire
- Firms that pay the lowest wages, and firms for which wages are a large share of total costs, will experience a larger impact
- Sectors that compete internationally (tradable sectors) will be hardest hit – consumers can buy foreign if local prices are high
- Centralized bargaining agreements have been found to decrease employment in an industry by 8-13%, with losses concentrated among small firms
- Alternate policy options are available to the minimum wage to address poverty, inequality and unemployment.
- Increased employment from higher wages will not be realised immediately
- There is a probability of job losses and lower likelihood that low likelihood of employment is likely to fall on lower-skilled, smaller firms, youth, tradable sectors
- Challenge in determining the correct wage level (firm size, sector, wages, productivity,
- May not necessarily reduce inequality

Institute for Poverty, Land and Agrarian Studies (PLAAS), University of the Western Cape[13]

- Employment losses observed in the agriculture sector may not necessarily be due to the minimum wage – as claimed by DPRU
- The cost-price squeeze in agriculture has been due to the rising cost of intermediate goods, rather than labour
- Wage determination has modestly increased real average wages and the overall wage bill, while the decline in employment has tapered off, and the numbers of workers per farm is stable.

Social Law Project, University of the Western Cape[14]

- The current bargaining council arrangement is patchy with overlaps
- South Africa doesn't have a coherent wage policy to undo apartheid legacy
- There has been an increases in levels of informal and unregulated work
- Compliance and enforcement problems
- SA has high levels of inequality and poverty, and a growing wage gap
- South African should address existing wage fragmentation by way of uniform coverage
- This will contribute to reducing income inequality and poverty, and provide protection to vulnerable workers

C. ***Industry Associations***

Business Unity South Africa[15]

- South Africa already has significant minimum wage coverage through sectoral determination
- Enforcement and compliance is a challenge
- A national minimum wage is a blunt instrument to reduce poverty and inequality, and presents unintended consequences
- Setting minimum wages too high will encourage informalisation, and result in job losses
- The real challenge is the level at which to set the minimum wage

- If a national minimum wage is contemplated, it must be cognisant of the effects on productivity, employment of vulnerable groups, inflation, tax and social contributions
- A sectoral minimum wage allows for consideration of different costs of living in different areas, productivity levels and employer's ability to pay (particularly small business)
- Biggest challenge is achieve a balance between protecting vulnerable workers and limiting potential negative economic consequences

Black Management Forum[16]

- Acknowledge the importance of the debate on the national minimum wage
- The national minimum wage is one of the most effective mechanism through which inequality could be addressed
- The inequality status quo is not sustainable
- There are losers and winners, advantages and disadvantages associated with the policy choice
- That international experience has shown varied experiences (success and failure) with a national minimum wage
- A national minimum wage should not be seen as a panacea
- Must consider the size of the firms, sector etc, in determining the a national minimum wage

Progressive Professionals Forum[17]

- Supportive of the introduction of a national minimum wage
- The aim of a national minimum wage must be to ensure that vulnerable workers are guaranteed a minimum income
- Positive step towards achieving a decent working class environment
- Will lift the working poor from extreme poverty and facilitate the redistribution of wealth in an unequal society
- National minimum wage must not remove gains from collective bargaining

National Employers' Association of South Africa (NEASA)[18]

- It is necessary to ensure that the implementation of a national minimum wage does not reduce employment or increase inequality
- An incorrect approach to the minimum wage would certainly destroy jobs, increase unemployment and consequently increase inequality. And once implemented, the policy is impossible to reverse/change
- The current debate on the national minimum wage is limited by inadequate information on what is envisaged by government
- Upon implementation, a national minimum wage is likely to increase an employer's wage bill and will drive up costs, thereby hurting consumer spending power.
- The effect of a national minimum wage on the demand in the economy takes time to effect
- Necessary to weigh up costs arising from job destruction and unemployment against the benefits of higher wages for those employed.
- A national minimum wage established at a level unrelated to productivity and demand, would inevitably lead to job losses. Noted that the metal engineering industry shed 250 000 jobs in the past 5 years due to unrealistic wages set by the bargaining council
- If a minimum wage was implemented it should be fixed at a level where new entrants to the labour market could be absorbed at an affordable and sustainable cost, and that a healthy trade-off between a minimum wage and employment be maintained at all times. Government would need a huge amount of wisdom in addressing this issue.

Agri SA[19]

- A national minimum wage at a higher than the current minimum wage in agriculture presents a challenge with a number of unintended consequences
- May lead to fewer jobs in the sector and probably more import competition from neighbouring countries.

- Policy environment supportive of job creation is required if South Africa is to achieve the NDP goal of creating one million job in the agricultural sector by 2030. The NDP goal was based on a lower minimum wage of R67 day.
- Farmworkers receive other services, including housing, transport, water and electricity (the so-called social wage) from farmers that are not accounted for in the wage bill
- Farmers have had to shed jobs since the imposition of sectoral minimum wage
- A higher national minimum wage could result in additional job losses
- Could also attract more foreign workers
- Cite the analysis from Bureau for Food and Agricultural Policy (BFAP)[20] in 2012/2013 that found most farmers cannot afford more than R105 per day without compromises on employment levels

D. ***Trade unions***

National Union of Metalworkers South Africa[21]

- Is needed given the country's levels of poverty and inequality
- Would ensure that workers were not exploited by capital
- Would improve the living condition of the working class
- Necessary to avoid further social turmoil
- To avoid the unintended consequences of a national minimum wage, employers unable to pay the national minimum wage could be exempted

Congress of South African Trade Unions (COSATU)[22]

- A national minimum wage is part of a coherent wage and (pro-poor) incomes policy, aimed at radically reducing inequality policy package to reduce poverty
- There is no categorical link between the level of wages and levels of employment. In most cases where wages had risen, more job opportunities were created and where wages had stagnated, there was a higher loss of jobs.
- The need to align the debate on the national minimum wage with how it could address poverty and inequalities, rather than the number of jobs that would be lost.
- That it is a misconception to claim that the implementation of a national minimum wage would destroy small businesses, as it would be difficult to enforce in small businesses

South African Transport and Allied Workers (SATAWU)[23]

- Exploitation of labour occurs in the South African economy
- The country cannot afford to accept the status quo and should intervene to distantly the apartheid structure

E. ***Lobby groups***

Free Market Foundation (FMF)[24]

- Labour unions and government interventions, in this case the minimum wage, limit economic freedom
- The job losses in agriculture are evidence that a national minimum wage will cause a loss of employment
- A minimum wage will reduce employment opportunities generally, and especially for people with few skills.
- Will prevent people who typically would find employment in small and micro enterprises from ever gaining work experience because their productivity is not high enough to justify the wages employers would be compelled to pay them.
- The only alternative to a national minimum wage was to raise the skills of workers, improve the quality of education and provide experience
- NEDLAC was supposed to conduct a cost-benefit analysis of the national minimum wage
- A national minimum wage was only a part of solving the problem of income inequalities and poverty

[1] 185 out of the 193 member states of the UN
[2] The wage level at which there is no excess demand or supply for labour
[3] Card, D. and Krueger, A. (1995), "Myth and Measurement: The New Economics of the Minimum Wage." Princeton University Press, Princeton, NJ.
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[8] Bhorat, H., Kanbur, R. & Mayet, N. 2012, *Minimum Wage Violation in South Africa*, University of Cape Town, Cape Town.
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10 Dinkelman, T., Ranchhod, V. & Hofmeyr, C. 2014, 'Enforcement and compliance: the case of minimum wages and mandatory contracts for domestic workers', Econ3X3
11 Presentation by DPRU to Portfolio Committee on Labour on Minimum wage, 20th August 2014 (http://db3sqepoi5n3s.cloudfront.net/files/140820minimum_wage_presentation-parliament_dpru_hbbs_aug2014.ppt)
[1212] Presentation by Prof Neil Rankin of Stellenbosch University to to Portfolio Committee on Labour on Minimum wage, 10th September 2014 (http://www.pmg.org.za/report/20140910-national-minimum-wage-input-from-south-african-national-taxi-council-stellenbosch-university)
[13] Presentation by Institute for Poverty, Land and Agrarian Studies University of the Western Cape to Portfolio Committee on Labour on Minimum wage, 12th September 2014 (http://db3sqepoi5n3s.cloudfront.net/files/140912plaas.ppt)
[14] Presentation by Social Law Project, University of the Western Cape to Portfolio Committee on Labour on Minimum wage, 12th September 2014 (http://db3sqepoi5n3s.cloudfront.net/files/140912uwc.ppt)
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[16] Presentation by Black Management Forum to Portfolio Committee on Labour on Minimum wage 3rd September 2014 (http://db3sqepoi5n3s.cloudfront.net/files/140903bmf_submission.doc)
[17] Presentation by Progressive Professionals Forum to Portfolio Committee on Labour on Minimum wage 12th September 2014 (http://db3sqepoi5n3s.cloudfront.net/files/140912ppf.ppt)
[18] Presentation by National Employers' Association of South Africa to Portfolio Committee on Labour on Minimum wage 5th September 2014 (http://db3sqepoi5n3s.cloudfront.net/files/140905neasa.ppt)
[19] Presentation by AgriSA to Portfolio Committee on Labour on Minimum wage 17th September 2014 (http://db3sqepoi5n3s.cloudfront.net/files/140917agri_sa.doc)
[20] Farm sectoral determination: An analysis of agricultural wages in South Africa; a report by the Bureau for Food and Agricultural Policy (BFAP); December 2012
[21] Presentation by National Union of Metalworkers to Portfolio Committee on Labour on Minimum wage 5th September 2014(http://www.pmg.org.za/report/20140905-national-minimum-wage-input-cosatu-numsa-satawu-free-market-foundation-national-employers-association-south)
[22] Presentation by COSATU to Portfolio Committee on Labour on Minimum wage 5th September 2014 (http://www.pmg.org.za/report/20140905-national-minimum-wage-input-cosatu-numsa-satawu-free-market-foundation-national-employers-association-south)

[23] Presentation by SATAWU to Portfolio Committee on Labour on Minimum wage 5th September 2014 (http://www.pmg.org.za/report/20140905-national-minimum-wage-input-cosatu-numsa-satawu-free-market-foundation-national-employers-association-south)

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